

25NNCV03013 25NNCV03013

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-14

Motion: MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES

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Case Number: 25NNCV03013 Hearing Date: August 14, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANNE CHO,

Plaintiff(s),

vs.

CITY OF
ALHAMBRA,

Defendant(s).

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CASE NO.: 25NNCV03013

[TENTATIVE]

ORDER RE: MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES

Dept.

3

8:30

a.m.

August

14, 2026

)

Defendant

City of Alhambra ("Defendant") moves for an order compelling further responses from plaintiff Anne Cho ("Plaintiff") to Special Interrogatories Nos. 19, 20, 21, and 22, which ask Plaintiff to identify the total number and date of motor vehicle accidents and slip and fall accidents since January 14, 2014.

Plaintiff

opposes the motion on the grounds that verified, code-compliant responses have already been served and that Defendant's interrogatories request discovery of "non-injury incidents that are remote in time, and have no relevancy to the issues in this lawsuit, violate [sic] Plaintiff's constitutional right to privacy." (Opp., p. 1.)

Defendant

takes issue with Plaintiff's responses because she states that she has not been injured in any accidents, which avoids the call of the question. Defendant also claims that Plaintiff cannot argue that the terms "motor vehicle accident" or "slip and fall accident" are vague because Plaintiff did not raise that issue when the parties met and conferred.

Plaintiff argues that a further response is unnecessary because accidents which produced no injuries are irrelevant. However, whether or not an accident produced an injury is something Defendant is entitled to question in order to determine whether those injuries impacted Plaintiff's current medical condition, especially when two of the motor vehicle accidents took place after the slip-and-fall incident underlying this action.

Accordingly,
the motion is GRANTED and Plaintiff is ordered to serve further responses to Special Interrogatories – Set One, Nos. 19-22 within 20 days of the date of this order.

Plaintiff and
counsel of record are sanctioned, jointly and severally, in the reduced amount of \$1,380, consisting of 4.6 hours at defense counsel's hourly rate of \$300, payable within 20 days of the date of this order. Although defense counsel's declaration states that he anticipated spending 2.5 hours reviewing the opposition brief, preparing the reply brief, and preparing for and appearing at the hearing, there is no supplemental declaration submitted with the reply brief stating how much time was actually incurred in doing so. Therefore, the Court only awards the time spent on meeting and conferring and preparing the instant motion.

Defendant to
give notice.

Dated
this 14th
day of August 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.